

not be held in contempt for failing to comply with the Court's order to prepare and file a compliance statement. No remote appearance is authorized for this hearing.

The OSC will be discharged, and Counsel may appear remotely at the August 19, 2026 hearing, if Counsel complies with the Court's order by filing and serving a compliance statement prepared by Counsel or the Class Action Administrator with the Court at least ten (10) court days before the hearing.

11. 9:00 AM CASE NUMBER: C23-02686
CASE NAME: ALICIA FRANCIS VS. BAY STANDARD MANUFACTURING, INC.
***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 19, 2025.

Upon review of the compliance report filed by Plaintiff's Counsel, and the declaration filed by Nicole Bench of Apex Class Action certifying disbursement filed on May 4, 2025, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$16,012.50 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of this Order.
2. No appearance is required at the hearing on July 22, 2026.

12. 9:00 AM CASE NUMBER: C23-03095
CASE NAME: DAVID KINSLEY VS. S. T. M. AUTOMOTIVE
***HEARING ON MOTION IN RE: FOR ORDER APPROVING SETTLEMENT**
FILED BY: KINSLEY, DAVID W.
TENTATIVE RULING:

Summary

Plaintiff David W. Kingsley, individually and on behalf of others similarly situated, brings this Motion for Order Approving PAGA Settlement against Defendant S.T.M Automotive. Since this motion is unopposed, this Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

This action was commenced on December 7, 2023, when Plaintiff David W. Kingsley filed a class action Complaint against Defendants S. T. M. Automotive d/b/a S&S Distributors ("Defendant"), alleging

violations of the California Labor Code including failure to pay wages for all time worked, failure to pay overtime, failure to authorize or permit meal and rest periods and pay associated premiums, failure to pay accrued vacation and sick pay, failure to indemnify for employment-related expenditures, failure to timely pay wages during employment and upon termination, and failure to provide accurate wage statements. See Complaint; Lavi Decl. ¶ 4. On the same date, Plaintiff provided the required PAGA notice to the Labor and Workforce Development Agency ("LWDA") alleging violations of Labor Code provisions related to minimum and overtime wages, meal and rest periods, timely payment of wages, accurate wage statements, sick pay, and vested vacation wages. Lavi Decl. ¶ 3, Ex. 1. On February 13, 2024, Plaintiff filed a First Amended Complaint incorporating a cause of action under the Private Attorneys General Act ("PAGA"). See First Amended Complaint; Lavi Decl. ¶ 5.

Following the filing of the First Amended Complaint, the Parties agreed to an informal stay of discovery pending private mediation. In preparation for mediation, Defendant produced time and payroll records for randomly selected non-exempt employees, the employee handbook containing relevant policies, and information regarding PAGA Members, including the total number of pay periods at issue and the number of current and former employees. Lavi Decl. ¶ 6. On August 26, 2024, the Parties attended a full-day mediation with Daniel Turner, Esq., during which the Parties exchanged arguments regarding their respective claims and defenses. Following mediation, the Parties agreed to resolve the action on an individual basis for Plaintiff, dismiss the class claim allegations without prejudice, and enter into a PAGA-only settlement. Lavi Decl. ¶ 7, Ex. 2.

The Parties executed the "Private Attorneys General Act – Settlement Agreement" (the "Settlement Agreement"), attached as Exhibit 2 to the Declaration of David Lavi ("Lavi Decl."). The Settlement resolves PAGA claims on behalf of "PAGA Members," defined as all current and former hourly-paid, non-exempt employees who were employed by Defendants in California at any time during the PAGA Period of December 7, 2023, through August 26, 2024. Settlement Agreement ¶¶ 5-6. There are approximately 11 PAGA Members. Lavi Decl. ¶¶ 9-10. The Settlement provides for a non-reversionary Gross Settlement Amount of \$5,000.00. Settlement Agreement ¶¶ 1.10, 3.1; Lavi Decl. ¶ 11.

The Gross Settlement Amount shall be allocated as follows, subject to Court approval: (1) Plaintiff's Counsel Fee Payment of \$500.00; (2) Plaintiff's Counsel Litigation Costs Payment of \$75.00; and (3) Settlement Administrator Payment to Phoenix Settlement Administrators ("Phoenix") of up to \$1,850.00 for costs including translating the Notice from English to Spanish, preparing and mailing cover letters and checks, performing skip-traces, remailing returned payments, and handling inquiries. Settlement Agreement ¶ 3.2; Lavi Decl. ¶ 12. After deduction of these amounts, the Net Settlement Amount is estimated to be \$2,575.00. Settlement Agreement ¶ 3.2.3; Lavi Decl. ¶ 12.

The Net Settlement Amount shall be distributed with seventy-five percent (75%), or approximately \$1,931.25, paid to the LWDA, and twenty-five percent (25%), or approximately \$643.75, paid to PAGA Members on a pro rata basis based upon the number of pay periods worked by each Aggrieved Employee during the PAGA Period. Settlement Agreement ¶ 3.2.3; Lavi Decl. ¶ 12. Individual PAGA Payments will be treated as miscellaneous income for which a Form 1099 will be issued. Settlement

Agreement ¶ 3.2.3.2; Lavi Decl. ¶ 14. Defendants shall deposit the Gross Settlement Amount into a Qualified Settlement Fund established by the Settlement Administrator, and within fourteen (14) calendar days of receipt, the Settlement Administrator shall issue payments to PAGA Members, the LWDA, Plaintiff's Counsel, and itself. Settlement Agreement ¶¶ 4.3-4.4; Lavi Decl. ¶¶ 16-17.

All checks to PAGA Members shall remain valid and negotiable for 180 days from the date of issuance. If any checks are not cashed within 180 days of mailing, those funds shall be transmitted to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Code of Civil Procedure § 1500, et seq., resulting in no "unpaid residue" under California Code of Civil Procedure § 384. Settlement Agreement; Lavi Decl. ¶ 17. The requested attorneys' fee award of \$500.00 (10% of the Gross Settlement Amount) and costs of \$75.00 are reasonable and appropriate under California Labor Code section 2699(g)(1), reflecting the work performed on a contingency basis, the risks incurred, and the results obtained for the State of California and Aggrieved Employees. Lavi Decl. ¶¶ 46, 54.

Plaintiff contends that the Settlement represents a fair, adequate, and reasonable resolution of this action given the risks inherent in continued litigation, including the unfortunate passing of Plaintiff which would require a motion to appoint a new representative, potential challenges to manageability, disputed merits, and the possibility of drastic reduction in penalties. In contrast, this settlement guarantees immediate recovery for the State of California and PAGA Members while preserving PAGA Members' individual wage claims. Pursuant to California Labor Code § 2699(l)(2), a copy of the proposed Settlement and information regarding the approval hearing was submitted to the LWDA on December 5, 2025. Lavi Decl. ¶ 7, Ex. 3.

Analyses

PAGA allows an "aggrieved employees" to bring a civil action on behalf of himself or herself, other aggrieved employees and the State to recover civil penalties which, outside of PAGA, only the LWDA can collect from an employer. Cal. Labor Code § 2699(a). The settlement of a PAGA action requires court approval. See Cal. Labor Code § 2699(l)(2). In reviewing a PAGA settlement, the Court need only ensure that "a negotiated resolution is fair to those affected." *Williams v. Sup. Ct.*, (2017). 3 Cal.5th 531, 549 The court's focus is not the monetary amount which aggrieved employees or the State stand to receive, but on whether the total amount achieves PAGA's objective - "to incentive private parties to recover civil penalties for the government that otherwise may not have been assessed and collective by overburdened state enforcement agencies." See *Ochoa-Hernandez v. CIADERS Foods, Inc.*, 2010 WL 1340777 (N.D. Cal. Apr. 2, 2010) (citing *Arias v. Sup. Ct.*, (2009)). 46 Cal.4th 969, 986). Penalties recovered under PAGA are, in part, to "be distributed to the [LWDA] for enforcement of labor laws [] and for education of employers and employees about their rights and responsibilities under this code [].to supplement the funding to the agency for those purposes." See Cal. Labor Code § 2699(j).

Because a PAGA claim is effectively considered a law enforcement action, it does not have to meet the requirements of a class action. *Arias, supra*, 46 Cal. 4th at 980-988 (affirming lower court's holding

that “plaintiff need not satisfy class action requirements” to assert a PAGA claim). Moreover, because PAGA claim is “a statutory action for penalties brought as a proxy for the State,” “there is no need to protect absent employees’ due process rights[.]” *Williams, supra*, 3 Cal.5th at 546. “PAGA does not make other potentially aggrieved employees parties” to the action and no “due process concerns arise under PAGA because absent employees do not own a personal claim for PAGA civil penalties and whatever personal claims the absent employees might have for relief are not at stake.” *Id.* at 546-47. 17 Accordingly, “[u]nnamed employees need not be given notice of the PAGA claim, nor do they have the ability to opt-out of the representative PAGA claim.”

However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Ruling

1. Plaintiff’s Motion for Order Approving Settlement Pursuant to the California Labor Code Private Attorney General Act is granted.
2. The Court will execute the proposed order lodged on December 5, 2026, and will request that the Clerk of the Court attach this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.
4. No appearance is required on July 22, 2026.

13. 9:00 AM CASE NUMBER: C23-03161

CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND 2ND AMENDED COMPLAINT
FILED BY: INTEX MARKETING LTD.**

TENTATIVE RULING:

The hearing on this motion is **continued** to January 20, 2027 at 9:00 a.m. in Department 16 by stipulation of the parties. No appearance is required on July 22, 2026.